

Radhey Shyam v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 27 April 2023 · WRIT - C No. - 13733 of 2023 · **Notice left standing; assessment to be finalized under the Supply Code.**

HEADNOTE

The Allahabad High Court declined to interfere, at the pre-finalization stage, with a provisional assessment notice issued for alleged theft of electricity after the consumer had replied and the authority was considering that reply. It directed the respondents to finalize the proceedings expeditiously, strictly in accordance with the procedure under the Electricity Supply Code, 2005, and disposed of the writ.

FACTUAL SUMMARY

Radhey Shyam filed a writ petition in the Allahabad High Court against the State of U.P. and two others, challenging a provisional assessment notice dated 12 January 2023 issued by respondent no. 2 for making an assessment in a case of theft of electricity. By the time the petition was heard, he had already filed his reply. Counsel for the respondents told the Court that the reply was under consideration and that the proceedings would be finalized expeditiously.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

Provisional assessment for theft — writ interference

HOLDING

No case was made out to interfere with the notice of provisional assessment at this stage, the petitioner having already replied and the respondents being in the process of considering that reply. The respondents must finalize the proceedings expeditiously, strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. The petition was disposed of on that direction. ¶ 1

FLAG The order cites the Electricity Supply Code, 2005 without a clause number; 'procedure' records that general direction and is not a numbered clause.

PRINCIPLE TAGS

provisional-assessment-no-writ-interference-finalize-under-code Applied to leave the 12 January 2023 provisional assessment notice undisturbed while the reply was still under consideration, and to require expeditious finalization strictly under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THEFT OF ELECTRICITY WAS MADE OUT AND WHAT ASSESSMENT, IF ANY, SHOULD FOLLOW ON THE PETITIONER'S REPLY

Interference was declined only at the pre-finalization stage. Completion of the assessment was left to the respondents under the Supply Code procedure. ¶ 1